LAW & JUDICIARY | Justice in the Balance

MY IDEA OF INDIA. And the importance of separation of powers in a democracy

JUSTICE DHANANJAYA Y. CHANDRACHUD
Chief Justice of India

TRANSFORMING JUSTICE

It was the first time ever that a sitting Chief Justice of India was taking live questions at a forum, and Justice D.Y. Chandrachud rose to the occasion with characteristic finesse at the India Today Conclave. Batting finely for the institution (a la Rahul Dravid, since we asked), he defended the existing system, while emphasising the need to modernise it and make the judicial process more transparent and accessible.

The honourable justice deflected with ease the difficult questions that were thrown at him. On the collegium system, he said he had to work within the system he was given, but outlined the processes and considerations that went into choosing judges—merit, seniority, inclusion (of gender, marginalised communities and minorities) and broader dispersal of judicial office across the country.

On the perceived conflict between the executive and judiciary, the honourable justice followed the lead of the law minister, who had spoken earlier in the day, saying what they had was perhaps a difference of perception, and nothing that could not be dealt with "a sense of robust constitutional statesmanship".

The justice had also come armed with statistics to respond to the charge that judges took long breaks. Pulling them out, he said the US Supreme Court worked 80 days a year to India's 200 days. Their work went beyond the courtroom, preparing for cases the next day. And often carried over into vacation.

His energies during his tenure, the CJI admitted, were concentrated on modernising the judiciary, from digitising all 34,000 verdicts of the Supreme Court (delivered since 1950), translating them in all the languages recognised by the Constitution and putting them in a free judgment text portal accessible to all, to allowing livestreaming of court proceedings. ■

> In my 25 years as judge of the high court, as a Chief Justice of the high court and a judge of the Supreme Court, no one has told me to decide a case in a particular way. If by pressure you mean pressure from the political executive, absolutely no!

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I don't follow Twitter, because it is important for us not to be affected by the cacophony of the extreme views you sometimes find on it

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Sexual orientation of a candidate has nothing to do with the ability or the constitutional entitlement of that candidate to assume a high constitutional office of a high court